

Short title,
construc-
tion, com-
mencement
and extent.

9.—(1) This Act may be cited as the Solicitors Act, 1933.

(2) The Solicitors Act, 1932, and this Act shall be construed together as one Act and may be cited together as the Solicitors Acts, 1932 and 1933.

(3) This Act shall come into operation on the first day of January, nineteen hundred and thirty-four.

(4) This Act shall not extend to Scotland or to Northern Ireland.

CHAPTER 25.

An Act to amend the law relating to Pharmacy and Poisons and for purposes consequential on such amendment. [28th June 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

PHARMACY.

Membership
of Pharma-
ceutical
Society.

1.—(1) Every person registered as a pharmacist, shall, by virtue of being so registered, be a member of the Pharmaceutical Society of Great Britain (in this Act referred to as "the Society"), and the provisions of the Pharmacy Acts and of the Charter of Incorporation of the Society, in so far as they provide that persons shall become members of the Society by election, shall cease to have effect.

(2) Every member of the Society shall, in addition to the fees payable on registration as a pharmacist, pay such fee (in this section referred to as "a retention fee") as may be prescribed by byelaws, but not exceeding two pounds, in respect of the retention of his name on the register in any year subsequent to the year in which he first becomes a member of the Society, or, in the case of a person who was a member of the

Society immediately before this section comes into operation, subsequent to the year in which this section comes into operation.

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—cont.

(3) Different retention fees may be prescribed under this section as regards different classes of members of the Society, and provision may be made by byelaws for exempting any class of the said members from liability to pay a retention fee.

(4) If a person on whom a demand has been made, in the manner prescribed by byelaws, for payment of a retention fee payable by him under this section fails to pay the fee within two months after the date on which the demand therefor was made, the Council of the Society (in this Act referred to as "the Council") may remove his name from the register, but if, either within the year in respect of which the fee is payable or within such longer period as the Council may allow, the person whose name has been removed from the register pays to the Society the retention fee, together with such additional sum, if any, by way of penalty for the default as may be prescribed by byelaws, his name shall be restored to the register, and, if the Council so directs, the restoration shall have effect as from the date on which his name was removed from the register.

(5) A person shall, on ceasing to be registered as a pharmacist, cease to be a member of the Society.

(6) Except in so far as the Council otherwise directs, the register of members of the Society and associates and apprentices or students directed to be kept by section five of the Pharmacy Act, 1852, shall cease to be kept, and so much of the Pharmacy Acts as relates to the keeping of the said register and to the granting by the registrar of certificates of inclusion therein, or of membership of the Society, shall cease to have effect.

15 & 16 Vict.
c. 56.

(7) In this section the expression "year" means a period of twelve months beginning on such date as the Council may from time to time determine.

(8) Nothing in this section shall apply to honorary or corresponding members of the Society.

2.—(1) It shall be the duty of the Council on the demand of a registered pharmacist to cause a certificate of registration to be issued to him without fee :

Issue of
certificates
of registra-
tion, and

PART I.

—cont.

penalties
for failure
to surrender
or abuse of
certificates.

Provided that; where a certificate of registration has already been issued to the person making the demand, there shall be no obligation upon the Council to cause a further certificate to be issued to him unless he satisfies the registrar that the original certificate has been lost or destroyed and pays such fee, if any, in respect of the issue of the further certificate as may be prescribed by byelaws.

(2) If a person to whom a certificate of registration has been issued ceases to be registered as a pharmacist, he shall, within fourteen days after so ceasing, transmit the certificate to the registrar for cancellation, and, if he fails so to do, he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding five pounds and to a further fine not exceeding one pound for every day subsequent to the day on which he is convicted of the offence during which the default continues.

(3) If, with intent to deceive, a person—

- (a) forges, or uses, or lends to or allows to be used by any other person a certificate of registration or any other certificate issued under any of the Pharmacy Acts; or
- (b) makes or has in his possession a document so closely resembling any such certificate as aforesaid as to be calculated to deceive;

he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding twenty pounds and, in the case of a continuing offence, to a further fine not exceeding five pounds for every day subsequent to the day on which he is convicted of the offence during which the contravention continues.

(4) In the application of this section to England, the expression “forges” has the same meaning as in the Forgery Act, 1913.

3 & 4 Geo. 5.
c. 27.

Restriction
on use of
certain
titles, &c.

3.—(1) It shall not be lawful for a person, unless he is registered as a pharmaceutical chemist, to take or use the title of pharmaceutical chemist or pharmacist, or for any person unless he is registered as a pharmacist to take or use the title of “chemist and druggist,” or of druggist or of pharmacist or of member of the Pharmaceutical Society, or to take or use in connection with the sale of goods by retail the title of chemist.

(2) It shall not be lawful for a person to use in connection with any business any title, emblem or description reasonably calculated to suggest that he or anyone employed in the business possesses any qualification with respect to the selling, dispensing or compounding of drugs or poisons other than the qualification which he in fact possesses.

PART I.
—*cont.*

For the purposes of this subsection the use of the description “pharmacy” in connection with a business carried on on any premises shall be deemed to be reasonably calculated to suggest that the owner of the business and the person having the control of the business on those premises are registered pharmacists.

(3) If a person acts in contravention of the foregoing provisions of this section, he shall, on summary conviction, be liable in respect of each offence to a fine not exceeding twenty pounds and in the case of a continuing offence to a further fine not exceeding five pounds for every day subsequent to the day on which he is convicted of the offence during which the contravention continues.

4.—(1) The Privy Council may nominate three persons to be members of the Council of the Society in addition to the persons appointed as members of the Council under the Charter of Incorporation of the Society, and the persons so nominated shall hold office as members of the Council for such period as the Privy Council may determine.

Nomination
by Privy
Council of
additional
members of
Council of
Society.

(2) A person may be nominated under this section as a member of the Council whether he is or is not a member of the Society.

5. Section two of the Pharmacy Act, 1852, shall cease to have effect so far as it requires byelaws to be confirmed and approved by a special general meeting of the Society.

Byelaws of
Society not to
require confirma-
tion by general
meeting.
15 & 16 Vict.
c. 56.

6.—(1) For the purposes of this Act there shall be appointed a Committee of the Society which shall be known as “the Statutory Committee” and which shall be constituted in the manner provided by this section.

Constitu-
tion of
Statutory
Committee.

(2) The Statutory Committee shall consist of six members, of whom one, who shall be a person having

PART I.
—*cont.*

practical legal experience, shall be appointed by the Privy Council, and of whom five shall be persons appointed by the Council of the Society.

(3) The member appointed by the Privy Council shall be the chairman of the Statutory Committee, and a person may be appointed a member of the Committee whether he is or is not a member of the Society or of the Council of the Society.

(4) The members first appointed by the Council of the Society shall include a pharmacist resident in Scotland and if, on the occurrence of a vacancy amongst the members appointed by the Council of the Society, none of those members is a pharmacist so resident, the person appointed to fill the vacancy shall be a pharmacist so resident.

(5) Subject to the provisions of this section, a member of the Statutory Committee shall hold office for a period of five years from the date of his appointment but shall be eligible for reappointment at the expiration of that period.

(6) A member of the Statutory Committee may at any time resign his appointment, in the case of the member appointed by the Privy Council by giving notice in writing of his resignation to the Clerk of the Privy Council, and in the case of any other member by giving such notice to the Registrar.

(7) It shall be lawful for the body by which any member of the Committee was appointed to remove him from his office for inability to perform his duties or for misbehaviour.

(8) If the member appointed by the Privy Council becomes, by reason of illness or other infirmity temporarily incapable of performing the duties of his office, the Privy Council may appoint a deputy, (who shall be a person having practical legal experience, but who need not be a member of the Society or of the Council), to perform his duties for any period not exceeding six months at one time, and the person so appointed shall, during that period, have the same powers as the person originally appointed.

(9) There shall be paid to the members of the Committee such reasonable travelling expenses as may

be fixed by the Council with the approval of the Privy Council.

PART I.
—*cont.*

(10) The expenses of the Statutory Committee (including any such fees payable to any of the members thereof as may be fixed by the Council with the approval of the Privy Council) shall be defrayed by the Society.

(11) The provisions of the First Schedule to this Act shall have effect with respect to the proceedings of the Statutory Committee.

7.—(1) If a registered pharmacist, or a person employed by him in the carrying on of his business has been convicted of any such criminal offence, or been guilty of such misconduct as, in the opinion of the Statutory Committee, renders him, or in the case of an employee, would if he were a registered pharmacist, render him, unfit to be on the register, the committee, after making inquiry into the case, may, subject to the provisions of this Act, direct the registrar to remove the name of the pharmacist from the register.

Removal
of pharma-
cists from
and restora-
tion to
register.

(2) If the Statutory Committee thinks fit in any case so to do, it may, either of its own motion or on the application of the person concerned, direct the registrar to restore to the register, either without fee or on payment of such fee, not exceeding the fee payable on registration as a pharmacist, as may be prescribed by byelaws, any name or entry which has been removed from the register :

Provided that, where an appeal to the High Court against the removal of a name from the register has been dismissed by the High Court, a direction under this subsection in respect of that name shall not take effect unless approved by the Privy Council.

(3) The power of the Council to remove members from the Society and the power of the Privy Council to direct the removal of names from the register shall cease, but nothing in this section shall affect the provisions of sections ten, eleven and twelve of the Pharmacy Act, 1868, with respect to the erasure from the register of names and entries in the cases to which those sections respectively relate.

31 & 32 Vict.
c. 121.

PART I.
—*cont.*

Conditions
to be
fulfilled by
pharmacist
in order to
become
authorised
seller of
poisons.

8. A registered pharmacist carrying on a business which comprises the retail sale of drugs shall be an authorised seller of poisons within the meaning of this Act if the following conditions are complied with—

- (a) in each set of premises where the business is carried on, the business must, so far as concerns the retail sale of drugs, be under the personal control of the pharmacist himself or of some other registered pharmacist; and
- (b) the name and certificate of registration of the person having the control of the business as aforesaid must be conspicuously exhibited in the premises.

Conditions
to be ful-
filled by
body cor-
porate in
order to
become
authorised
seller of
poisons.

9.—(1) Subject to the provisions of this section, a body corporate carrying on a business which comprises the retail sale of drugs shall be an authorised seller of poisons within the meaning of this Act if the following conditions are complied with—

- (a) the business must, so far as concerns the keeping, retailing, dispensing and compounding of poisons, be under the management of a superintendent in relation to whom the following requirements are fulfilled :
 - (i) he must be a registered pharmacist;
 - (ii) a statement in writing signed by him and on behalf of the body corporate stating his name and specifying whether or not he is a member of the board must have been sent to the registrar;
 - (iii) he must not be acting at the time in a similar capacity for any other body corporate; and
- (b) in each set of premises where the business is carried on, the business must, so far as concerns the retail sale of drugs, if not under the personal control of the superintendent, be carried on, subject to the directions of the superintendent, under the personal control of a manager or assistant who is a registered pharmacist; and
- (c) the name and certificate of registration of the person having the control of the business as aforesaid, whether he is the superintendent or some other person, must be conspicuously exhibited in the premises.

PART I.
—*cont.*

(2) Notwithstanding the restrictions imposed by the foregoing provisions of this Act on the use of certain titles, emblems and descriptions, a body corporate which is an authorised seller of poisons may, if the superintendent is a member of the board, use the description of "chemist and druggist," or of chemist, or of druggist, or of dispensing chemist or dispensing druggist, and may use the description "pharmacy" in connection with the business:

Provided that nothing in this subsection shall authorise the use of any of the said descriptions in or on any premises which are for the time being disqualified by virtue of a direction under this section from being registered in the register of premises, or in connection with any business so far as it is carried on in any premises so disqualified.

(3) If—

- (a) a body corporate which is an authorised seller of poisons has been convicted of an offence under the Pharmacy Acts; or
- (b) any member of the board or any officer of that body, or any person employed by that body in carrying on the business, has been convicted of any such criminal offence, or been guilty of any such misconduct, as, in the opinion of the Statutory Committee, renders him, or would if he were a registered pharmacist render him, unfit to be on the register;

the Committee may inquire into the case and may, subject to the provisions of this Act, direct—

- (i) that the body corporate shall cease to be an authorised seller of poisons, and be disqualified, for such period as may be specified in the direction, from being an authorised seller of poisons; or
- (ii) that any or all of the premises of the body corporate shall be removed from the register of premises and be disqualified, for such period as may be specified in the direction, from being registered therein.

(4) If the Statutory Committee thinks fit in any case so to do, it may, either of its own motion or on the application of the body corporate concerned, direct that

PART I.
—cont.

any disqualification imposed under this section shall cease:

Provided that where an appeal has been brought to the High Court against a direction involving a period of disqualification, a direction under this subsection for the cesser of any disqualification subsisting by virtue of the direction, whether as originally given or as modified by the High Court, shall not take effect unless approved by the Privy Council.

Continuation of business of pharmacist by representatives in case of death, &c.

10.—(1) Subject to the provisions of this section, if a registered pharmacist who is an authorised seller of poisons dies or becomes of unsound mind or is adjudged bankrupt or enters into any arrangement with his creditors, any representatives who thereafter carry on his business in accordance with the conditions hereinafter specified and are persons in relation to whom the requirements of this section are satisfied shall, for the purposes of that business and during the period specified in subsection (4) of this section, be authorised sellers of poisons within the meaning of this Act and be entitled to use in conjunction with the business name of the pharmacist, such titles, emblems and descriptions as might have been used by the pharmacist.

(2) The conditions referred to in subsection (1) of this section are as follows:—

- (a) in each set of premises where the business is carried on, the business, so far as concerns the retail sale of drugs, must be under the personal control of a registered pharmacist; and
- (b) the name and certificate of registration of the person having the control of the business as aforesaid must be conspicuously exhibited in the premises.

(3) The requirements to be satisfied under subsection (1) of this section in relation to the representatives are that their names and addresses must be registered with the registrar, together with a statement of the name of the pharmacist whose representatives they are.

(4) The period referred to in subsection (1) of this section shall be—

- (a) in the case of the death of a pharmacist, a period of five years from the date thereof;

- (b) in the case of the unsoundness of mind or bankruptcy of a pharmacist, a period of three years from the date when he became of unsound mind or was adjudged bankrupt;
- (c) in the case of an arrangement with the creditors of a pharmacist, a period of three years from the date when the representatives became entitled thereunder to carry on his business,

PART I.
—cont.

or such longer period as, on the application of the representatives, the Statutory Committee may, having regard to all the circumstances of the case, think fit to direct.

(5) If a representative or a person employed by the representatives in the carrying on of the business has been convicted of any such criminal offence, or been guilty of any such misconduct, as in the opinion of the Statutory Committee renders him, or would if he were a registered pharmacist render him, unfit to be on the register, the Statutory Committee, after making inquiry into the case, may, subject to the provisions of this Act, direct that the representatives shall cease to be authorised sellers of poisons and cease to be entitled to use the titles, emblems and descriptions which might have been used by the pharmacist.

(6) In this section the expression "representative" means an executor, administrator, trustee, or committee or a person authorised under section one of the Lunacy Act, 1908, to exercise in relation to a person of unsound mind not so found by inquisition any of the powers of a committee, and includes, in respect of the period of three months after the death of a pharmacist leaving no executor who is entitled and willing to carry on his business, any person beneficially interested in the estate of the pharmacist.

8 Edw. 7.
c. 47.

(7) Where immediately before the date on which this section comes into operation any executor, administrator or trustee of the estate of a deceased pharmacist was continuing the business of that pharmacist in accordance with the provisions of section sixteen of the Pharmacy Act, 1868, as amended by subsection (2) of section three of the Pharmacy Act, 1908, this section shall apply to the representatives of the pharmacist as if he had died immediately after this section came into operation.

31 & 32 Vict.
c. 121.
8 Edw. 7.
c. 55.

PART I.
—cont.

Conditions
as to the
giving of
directions
by Statu-
tory Com-
mittee in
case of
conviction
&c., of
employee.

11.—(1) Where an act or omission which, under the foregoing provisions of this Act, may be made the ground of a direction by the Statutory Committee involving the cesser or restriction of the right of a person (in this section referred to as “the owner of the business”) to be an authorised seller of poisons, is an act or omission on the part of an employee of the owner or, if the owner is a body corporate, is an act or omission on the part of any member of the board or any officer or employee of the body corporate, the Committee shall not give any such direction unless proof is given to its satisfaction of some one or more of the facts specified in the next succeeding subsection, and the Committee is of opinion that, having regard to the facts so proved, the owner ought to be regarded as responsible for the act or omission.

(2) The facts as to some one or more of which the Committee must be satisfied before giving any such direction as is mentioned in subsection (1) of this section are—

- (a) that the act or omission in question was instigated or connived at by the owner of the business or, if the owner is a body corporate, by any member of the board :
- (b) that the owner of the business, or any employee of the owner, or, if the owner is a body corporate, any member of the board or any officer or employee of the body corporate, had been guilty at some time within twelve months before the date on which the act or omission in question took place, of a similar act or omission and that the owner had, or reasonably ought to have had, knowledge of that previous act or omission :
- (c) if the act or omission in question was a continuing act or omission, that the owner of the business had, or reasonably ought to have had, knowledge of the continuance thereof :
- (d) in the case of a criminal offence being an offence under the Pharmacy Acts, that the owner of the business had not used due diligence to enforce the execution of those Acts.

(3) In this section references to the responsibility, knowledge or diligence of the owner of the business shall,

if the owner is a body corporate, be construed as references to the responsibility, knowledge or diligence of the board as a whole.

PART I.
—cont.

12.—(1) Every authorised seller of poisons shall cause all the sets of premises where his business, so far as it comprises the retail sale of drugs, is being carried on to be registered under this section.

Duty of
authorised
sellers of
poisons to
register
business
premises.

(2) An application for registration under this section shall be made in the manner prescribed by byelaws, and it shall be the duty of the registrar to keep, in accordance with the provisions of the byelaws, a register for the purposes of this section (in this Act referred to as "the register of premises") and, on payment of such fee as is hereinafter provided, to enter therein all sets of premises in respect of which an application for registration is duly made.

(3) On an application for registration under this section, there shall be payable such fee, not exceeding three pounds, in respect of the registration of any set of premises, as may be prescribed by byelaws, and the owner of the business carried on in any premises entered in the register shall pay such fee not exceeding three pounds as may be so prescribed (in this section referred to as "a retention fee") in respect of the retention of the premises on the register of premises in any year subsequent to the year in which the premises were first registered under this section in pursuance of an application made by him.

(4) Different fees may be prescribed under this section in relation to different circumstances.

(5) If a person on whom a demand has been made, in the manner prescribed by byelaws, for payment of a retention fee payable by him under this section fails to pay the fee within two months after the date on which the demand therefor was made, the Council may remove the premises from the register of premises, but if, either within the year in respect of which the fee is payable or within such longer period as the Council may allow, the owner of the business carried on in the premises pays to the Society the retention fee, together with such additional sum, if any, by way of penalty for the default, as may be prescribed by byelaws, the premises shall be restored

PART I.
—cont.

to the register, and, if the Council so directs, the restoration shall have effect as from the date on which the premises were removed from the register.

(6) The registration of any premises under this section shall become void on the expiration of fourteen days from the date of any change in the ownership of the business carried on therein.

(7) A document purporting to be a certificate signed by the registrar stating that, on a specified date, specified premises were, or were not, registered under this section shall be admissible in any proceedings as evidence that those premises were, or were not, registered on that date.

(8) In this section the expression “year” means a period of twelve months beginning on such date as the Council may from time to time determine.

Authorised
sellers of
poisons to
furnish
registrar
with list of
shops and
pharmacists
in charge.

13.—(1) Every authorised seller of poisons shall in the month of January in each year send to the registrar a list of all the sets of premises where his business, so far as it comprises the retail sale of drugs, is being carried on and the name of the registered pharmacist having the personal control of the business on each set of premises.

(2) An authorised seller of poisons who fails to comply with the provisions of this section shall be liable on summary conviction, in respect of each offence, to a fine not exceeding five pounds and to a further fine not exceeding one pound for every day subsequent to the day on which he is convicted of the offence during which the default continues.

Provisions
as to direc-
tions given
by Statu-
tory Com-
mittee and
as to appeals
to High
Court.

14.—(1) The Statutory Committee shall cause notice of any direction given by the Committee under this Part of this Act to be given to the person to whom the direction relates and, where the Committee refuses an application for a direction under this Part of this Act, the Committee shall cause notice of the refusal to be given to the applicant.

A notice required by this subsection to be given to any person shall be sent to him by registered letter addressed to him, if he is a pharmacist, at his address in the register, and, if he is a representative within the

meaning of section ten of this Act, at his address as last notified to the registrar, or, in the case of a person being a body corporate, shall be served on that body.

PART I.
—cont.

(2) A direction given by the Statutory Committee under this Part of this Act, other than a direction given on the application of the person to whom it relates, shall not take effect until the expiration of a period of three months from the date on which notice thereof is duly given to the person to whom it relates, or, in a case where an appeal has been brought against the direction, until the appeal is determined or withdrawn.

(3) A person aggrieved by a direction given by the Statutory Committee or by the refusal by the Committee of an application to the Committee to give a direction under this Part of this Act, may, at any time within three months from the date on which notice of the direction, or of the refusal, as the case may be, is given to him, appeal against the direction or refusal to the High Court.

(4) On an appeal under this Part of this Act the High Court may give such directions in the matter as they think proper, including directions as to the costs of the appeal, and the order of the High Court shall be final.

(5) Where a direction given by the Statutory Committee under this Part of this Act has taken effect or an order has been made by the High Court under this Part of this Act on an appeal against any such direction or refusal as aforesaid, it shall be the duty of the registrar to make such alterations in the register or the register of premises as are necessary to give effect to the direction or order.

PART II.

POISONS.

15. As from the appointed day the provisions of the Arsenic Act, 1851, and the provisions of the Pharmacy Acts relating to the sale and supply of poisons and poisonous substances shall cease to have effect and in lieu thereof the following provisions of this Part of this Act shall have effect.

Substitution
of new pro-
visions for
existing
provisions
as to sale of
poisons.
14 & 15 Vict.
c. 31.

PART II.

—cont.

Establish-
ment of
Poisons
Board.

16.—(1) For the purposes of this Act, there shall be an Advisory Committee, which shall be called, and is in this Act referred to as, “the Poisons Board.”

(2) The Poisons Board shall be constituted in manner provided by the Second Schedule to this Act.

(3) The procedure of the Poisons Board shall (subject to any regulations made by the Board with the approval of the Secretary of State) be such as the Board may determine.

Preparation
of list of
poisons for
purposes of
Act.

17.—(1) The Secretary of State shall as soon as may be after the passing of this Act cause the Poisons Board to prepare and submit to him for his approval a list of the substances which are to be treated as poisons for the purposes of this Act.

(2) The list to be prepared under this section shall be divided into two parts, as follows:—

Part I of the list shall consist of those poisons which, subject to the provisions of this Act, are not to be sold except by a person who is an authorised seller of poisons:

Part II of the list shall consist of those poisons which, subject to the provisions of this Act, are not to be sold except by a person who is an authorised seller of poisons or whose name is entered in a list kept under this Part of this Act by a local authority of persons who are to be entitled to sell poisons in Part II (in this Act referred to as a “local authority’s list”).

(3) In determining the distribution of poisons as between Part I and Part II of the said list, regard shall be had to the desirability of restricting the said Part II to articles which are in common use, or likely to come into common use, for purposes other than the treatment of human ailments, and which it is reasonably necessary to include in the said Part II if the public are to have adequate facilities for obtaining them.

(4) The Secretary of State shall forthwith take into consideration the list submitted to him by the Poisons Board, and may by order confirm it, with or without modifications, as he thinks proper:

PART II.
—cont.

Provided that where the Secretary of State proposes to confirm the list with modifications he shall inform the Board of the proposed modifications and give to the Board a reasonable opportunity of making any observations with respect thereto, and shall, before finally confirming the list, take into consideration any observations so made.

(5) The Secretary of State may from time to time, after consultation with or on the recommendation of the Poisons Board, by order amend or vary the said list as he thinks proper.

(6) The said list as in force for the time being is in this Act referred to as “the Poisons List,” and in this Act the expression “poison” means a poison included in the Poisons List.

18.—(1) Subject to the provisions of this Part of this Act, it shall not be lawful—

(a) for a person to sell any poison included in Part I of the Poisons List, unless—

- (i) he is an authorised seller of poisons; and
- (ii) the sale is effected on premises duly registered under Part I of this Act; and
- (iii) the sale is effected by, or under the supervision of, a registered pharmacist:

(b) for a person to sell any poison included in Part II of the Poisons List, unless either—

- (i) he is an authorised seller of poisons and the sale is effected on premises duly registered under Part I of this Act; or
- (ii) his name is entered in a local authority's list, and the sale is effected on premises specified in that list as being premises on which he is entitled, subject to the provisions of this Act, to sell poisons included in Part II of the Poisons List:

(c) for a person to sell any poison, whether included in Part I or in Part II of the Poisons List, unless the container of the poison is labelled in the prescribed manner—

- (i) with the name of the poison; and

Prohibitions
and regula-
tions with
respect to
sale of
poisons.

PART II.
—cont.

(ii) in the case of a preparation which contains a poison as one of the ingredients thereof, with the prescribed particulars as to the proportion which the poison contained in the preparation bears to the total ingredients; and

(iii) with the word “poison” or other prescribed indication of the character of the article; and

(iv) with the name of the seller of the poison and the address of the premises on which it was sold.

(2) Subject to the provisions of this Part of this Act and to any rules made under this Act dispensing with or relaxing any of the requirements of this subsection—

(a) it shall not be lawful to sell any poison included in Part I of the Poisons List to any person unless that person is either—

(i) certified in writing in the manner prescribed by rules, and by a person authorised by rules to give a certificate for the purposes of this section; or

(ii) known by the seller or by some registered pharmacist in the employment of the seller at the premises where the sale is effected, to be a person to whom the poison may properly be sold:

(b) the seller of any such poison shall not deliver it until—

(i) he has made or caused to be made an entry in a book to be kept for that purpose stating, in the form prescribed by rules, the date of the sale, the name and address of the purchaser and of the person, if any, by whom the certificate required under paragraph (a) of this subsection was given, the name and quantity of the article sold, and the purposes for which it is stated by the purchaser to be required; and

(ii) the purchaser has affixed his signature to the entry aforesaid.

19.—(1) Nothing in the last foregoing section shall apply—

PART II.
—cont.

- (a) to a medicine which is supplied by a duly qualified medical practitioner for the purposes of medical treatment, by a registered dentist for the purposes of dental treatment or by a registered veterinary surgeon for the purposes of animal treatment; or
- (b) to a medicine which is dispensed by an authorised seller of poisons on premises duly registered under Part I of this Act; or
- (c) to a poison forming part of the ingredients of a medicine which is supplied by an authorised seller of poisons on premises duly registered under Part I of this Act,

Exemption
with respect
to medi-
cines.

if the requirements contained in the following provisions of this section are satisfied in relation thereto.

(2) The medicine must be distinctly labelled with the name and address of the person by whom it is supplied or dispensed.

(3) On the day on which the medicine is supplied or dispensed or, if that is not reasonably practicable, on the day next following that day, there must be entered in a book which is used regularly for the purpose of this provision but which need not be used exclusively for that purpose the following particulars—

- (a) the date on which the medicine was supplied or dispensed;
- (b) the ingredients of the medicine and the quantity thereof supplied;
- (c) if the medicine was dispensed by an authorised seller of poisons, the name or initials and, if it is known, the address of the person by whom, and the name and, if it is known, the address of the person to whom, and the date on which, the prescription was given;
- (d) if the medicine was not so dispensed, the name of the person to whom it was supplied:

Provided that the provisions of this subsection—

- (a) need not be satisfied in the case of a medicine which is supplied on and in accordance with

PART II.
—*cont.*

a prescription given by a duly qualified medical practitioner under and in accordance with the Acts relating to national health insurance; and

- (b) shall, in the case of a medicine supplied on a prescription on which the medicine has been supplied by the seller on a previous occasion, be deemed to be complied with if the day on which the medicine is supplied and the quantity thereof supplied are entered in the book on that day or, if that is not reasonably practicable, on the day next following that day, together with a sufficient reference to an entry in the book duly recording the dispensing of the medicine on the previous occasion.

(4) In the case of a medicine which is supplied or dispensed by a person who is an authorised seller of poisons and is compounded by the person supplying or dispensing it or by a person in his employment, the medicine must have been compounded by or under the direct and personal supervision of a registered pharmacist.

(5) In the case of a medicine which is supplied or dispensed by a person who is an authorised seller of poisons, the supplying or dispensing of the medicine must be effected by or under the direct and personal supervision of a registered pharmacist.

Exemption
with respect
to sales
wholesale
and sales
to certain
persons.

20. Except as provided by rules, nothing in the foregoing provisions of this Part of this Act shall extend to or interfere with—

- (1) the sale of poisons by way of wholesale dealing;
or
- (2) the sale of poisons to be exported to purchasers outside the United Kingdom; or
- (3) the sale of an article to a duly qualified medical practitioner, registered dentist or registered veterinary surgeon for the purpose of his profession; or
- (4) the sale of an article for use in or in connection with any hospital, infirmary, dispensary or similar institution approved by an order, whether general or special, of the Secretary of State; or
- (5) the sale of an article by a person carrying on a business, in the course of which poisons are

regularly sold either by way of wholesale dealing or for use by the purchasers thereof in their trade or business to—

PART II.
—cont.

(a) a person who requires the article—

(i) for the purpose of his trade or business; or

(ii) for the purpose of enabling him to comply with any requirements made by or in pursuance of any enactment with respect to the medical treatment of persons employed by that person in any trade or business carried on by him; or

(b) a Government department or an officer of the Crown requiring the article for the purposes of the public service, or any local authority (whether a local authority as defined in this Act or not) requiring the article in connection with the exercise by the authority of any statutory powers; or

(c) a person or institution concerned with scientific education or research, if the article is required for the purposes of that education or research.

21.—(1) Every local authority shall keep for the purposes of this Part of this Act a list of persons who, not being entitled to sell poisons included in Part I of the Poisons List, are, subject to the provisions of this Act, to be entitled to sell poisons included in Part II of the Poisons List, and shall, subject as hereinafter provided, enter in the list the name of any person who, having premises in the area of the authority, makes an application to the local authority in the form prescribed by rules to have his name entered in the list as a person entitled subject to the provisions of this Act to sell such poisons on those premises :

Certain persons other than authorised sellers of poisons to be entitled to sell poisons in Part II of Poisons List.

Provided that the local authority may refuse to enter in, or may remove from, the list the name of any person who fails to pay the fees prescribed by rules or who in the opinion of the authority is, for any sufficient reason relating either to him personally or to his premises, not fit to be on the list.

(2) If any person is aggrieved by the refusal of the local authority to enter his name in the said list or by

PART II.
—cont.

the removal of his name therefrom under this section, he may, in accordance with rules made for the purposes of this section by the Secretary of State, appeal against the refusal or removal to the court of quarter sessions for the county or borough in which his place of business is situate.

(3) A local authority's list shall include particulars of the premises on which respectively the persons whose names are entered in the list are entitled to sell poisons included in the said Part II, and subject as aforesaid the said list shall be in the form prescribed by rules.

(4) Every person shall pay to the local authority such fees as may be prescribed by rules in respect of—

- (a) the entry of his name in the local authority's list; and
- (b) the making of any alteration in the local authority's list in relation to the premises on which he is entitled to sell; and
- (c) the retention of his name on the local authority's list in any year subsequent to the year in which his name is first entered therein.

(5) If any person whose name is entered in a local authority's list is convicted before any court of any criminal offence which, in the opinion of the court, renders him unfit to have his name on the list, the court may, as part of the sentence, order his name to be removed from the list and direct that he shall, for such period as may be specified in the order, be disqualified for having his name entered in any local authority's list.

(6) Every local authority's list shall be open at all reasonable times to the inspection of any person without fee.

(7) In this section—

The expression "relating to him personally" means, in relation to a person being a body corporate, relating personally to the members of the board, or to the managers or other officers of the body corporate:

The expression "year" means a period of twelve months beginning on such date as the local authority may from time to time determine.

(8) It shall not be lawful for any person whose name is entered in a local authority's list to use in connection with his business any title, emblem or description reasonably calculated to suggest that he is entitled to sell any poison other than a poison which he is under this Act entitled to sell, and if any person acts in contravention of this subsection he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding twenty pounds and, in the case of a continuing offence, to a further fine not exceeding five pounds for every day subsequent to the day on which he is convicted of the offence during which the contravention continues.

PART II.
—*cont.*

22. It shall not be lawful for a poison to be exposed for sale in, or to be offered for sale by means of, an automatic machine.

Prohibition of
sale of poisons
by means of
automatic
machines.

PART III.

MISCELLANEOUS.

23.—(1) The Secretary of State may, after consultation with or on the recommendation of the Poisons Board, make rules with respect to any of the following matters or for any of the following purposes :

Power of
Secretary of
State to
make rules.

- (a) the manufacture of pharmaceutical preparations containing poisons :
- (b) the sale, whether wholesale or retail, or the supply of poisons, by or to any persons or classes of persons and in particular but without prejudice to the generality of the foregoing provisions—

(i) for regulating or restricting the sale or supply of poisons by persons whose names are entered in a local authority's list and for prohibiting the sale of any specified poison or class of poisons by any class of such persons ; and

(ii) for prohibiting the sale by retail of poisons (being poisons included in Part I of the Poisons List) except on a prescription duly given by a duly qualified medical practitioner, registered dentist or registered veterinary surgeon, and for prescribing the

PART III.
—*cont.*

form and regulating the use of prescriptions given for the purpose of rules made under this paragraph; and

(iii) for dispensing with or relaxing with respect to poisons any of the provisions contained in Part II of this Act relating to the sale of poisons :

- (c) the storage, transport and labelling of poisons : .
- (d) the containers in which poisons may be sold or supplied :
- (e) the addition to poisons of specified ingredients for the purpose of rendering them readily distinguishable as poisons :
- (f) the compounding and dispensing of poisons :
- (g) the period for which any books required to be kept for the purposes of Part II of this Act are to be preserved :
- (h) the period for which any certificate given under Part II of this Act is to remain in force :
- (i) for requiring persons in control of the manufacture of pharmaceutical preparations containing poisons to be registered pharmacists or persons possessing the prescribed qualification in chemistry :
- (j) for prescribing anything which is by this Act to be prescribed by rules.

(2) The power to make rules under this section with respect to poisons includes the power to make rules with respect to any class of poisons or any particular poison.

(3) The Secretary of State may issue to the Poisons Board a direction that the power of the Board to make recommendations as to the making of rules with respect to the matters or for the purposes specified in paragraphs (a), (b) (i), (c), (d), (e) and (i) of subsection (1) of this section shall not be exercised except after consultation with such body of persons as is specified in the direction, being a body which is, in his opinion, representative of persons engaged in the manufacture of poisons or preparations containing poisons, and the Board shall comply with any such direction.

The Secretary of State may, from time to time, revoke or vary any such direction, without prejudice to the issue of a new direction.

PART III.
—*cont.*

24.—(1) A person who acts in contravention of or fails to comply with any of the provisions of Part II of this Act (other than subsection (8) of section twenty-one of this Act), or any rules made under this Part of this Act shall, on summary conviction, be liable in respect of each offence to a fine not exceeding fifty pounds, and, in the case of a continuing offence, to a further fine not exceeding ten pounds for every day subsequent to the day on which he is convicted of the offence during which the contravention or default continues.

Penalties.

(2) In the case of proceedings against a person under this section for or in connection with the sale, exposure for sale or supply of a poison effected by an employee—

(a) it shall not be a defence that the employee acted without the authority of the employer; and

(b) any material fact known to the employee shall be deemed to have been known to the employer.

(3) Notwithstanding any provision in any Act prescribing the period within which summary proceedings may be commenced, proceedings for an offence under this Act may be commenced at any time within the period of twelve months next after the date of the commission of the offence or, in the case of proceedings instituted by, or by the direction of, the Secretary of State, either within the period aforesaid or within the period of three months next after the date on which evidence sufficient in the opinion of the Secretary of State to justify a prosecution for the offence comes to his knowledge, whichever period ends on the later date.

For the purposes of this subsection, a certificate purporting to be signed by the Secretary of State as to the date on which such evidence as aforesaid came to his knowledge shall be conclusive evidence thereof.

(4) A fine recovered in proceedings instituted under this Act by, or by the direction of, the Society shall, notwithstanding anything in any public or other Act, be paid to the Society.

PART III.
—cont.

(5) A document purporting to be a certificate signed by a public analyst or person appointed by the Secretary of State to make analyses for the purposes of this Act stating the result of an analysis made by him, shall be admissible in any proceedings under this Act as evidence of the matters stated therein but either party may require the person by whom the analysis was made to be called as a witness.

Inspection
and enforce-
ment of
Act.

25.—(1) It shall be the duty of the Society, by means of inspection and otherwise, to take all reasonable steps to enforce the provisions of Part I of this Act and to secure compliance by registered pharmacists and authorised sellers of poisons with the provisions of Part II of this Act, and of the rules, and the Society shall for that purpose appoint such number of inspectors as the Privy Council may direct.

(2) A person shall not be qualified for appointment by the Society as inspector under this section unless he is a registered pharmacist, and every such appointment shall be subject to the approval of the Privy Council.

(3) A person appointed by the Society as inspector under this section shall hold his office subject to such conditions with respect to salary and otherwise as the Council may with the approval of the Privy Council determine.

(4) An inspector appointed by the Society under this section shall, for the purpose of enforcing the provisions of Part I of this Act and for securing compliance by registered pharmacists and authorised sellers of poisons with the provisions of Part II of this Act and of the rules made under this Part of this Act, have power at all reasonable times to enter any premises which are on the register of premises and shall, for the purpose of securing compliance by other persons with the provisions of the said Part II and of the said rules, so far as those provisions relate to poisons included in Part I of the Poisons List, have power to enter any premises in which he has reasonable cause to suspect that a breach of the law has been committed in relation to any such poisons, and in either case shall have power to make such examination and inquiry and to do such other things (including the taking, on payment therefor, of samples) as may be necessary for ascertaining whether the provisions aforesaid are being complied with.

(5) It shall be the duty of every local authority by means of inspection and otherwise to take all reasonable steps to secure compliance by persons not being authorised sellers of poisons with the provisions of Part II of this Act and of the rules made under this Part of this Act so far as those provisions relate to poisons included in Part II of the Poisons List, and for that purpose to appoint inspectors, and an inspector appointed by the Society in pursuance of subsection (1) of this section may, with the consent of the Society, be appointed by a local authority to be also an inspector for the purposes of this subsection.

PART III.
—cont.

(6) An inspector appointed by the local authority shall, for the purposes of the last preceding subsection, have power at all reasonable times to enter any premises on which any person whose name is entered in a local authority's list carries on business, and any premises on which the inspector has reasonable cause to suspect that a breach of the law has been committed in respect of any poisons included in Part II of the Poisons List, and in either case shall have power to make such examination and enquiry and to do such other things, including the taking, on payment therefor, of samples, as may be necessary for the purposes of the inspection.

(7) An inspector appointed by a local authority in England for the purposes of subsection (5) of this section shall have power with the consent of the local authority to institute proceedings under this Act before a court of summary jurisdiction in the name of the authority, and to conduct any proceedings so instituted by him notwithstanding that he is not of counsel or a solicitor.

(8) If a person wilfully delays or obstructs an inspector in the exercise of any powers under this section, or refuses to allow any sample to be taken in accordance with the provisions of this section, or fails without reasonable excuse to give any information which he is duly required under this section to give, he shall in respect of each offence be liable on summary conviction to a fine not exceeding five pounds.

(9) Without prejudice to the generality of the foregoing provisions, it shall be the duty of every person who appears to be conducting in any premises any business which comprises the retail sale of drugs to

PART III.
—cont.

state, on being required so to do by an inspector appointed under this section, who the owner of the business is, and if any person fails without reasonable excuse to comply with the provisions of this subsection he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding five pounds.

(10) Nothing in this section shall authorise any inspector appointed thereunder to enter or inspect the premises, not being a shop, of a duly qualified medical practitioner, a registered dentist or a registered veterinary surgeon.

Orders and
rules to be
laid before
Parliament

26.—(1) All orders and rules made by the Secretary of State under this Act shall be laid before each House of Parliament for a period of thirty days during the Session of Parliament and, if an Address is presented to His Majesty by either House of Parliament before the expiration of that period, praying that the order or rule may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of any new order or rule:

Provided that in reckoning any such period of thirty days as aforesaid no account shall be taken of any time during which both Houses of Parliament are adjourned for more than four days.

(2) If the Secretary of State—

- (a) makes an order confirming the Poisons List with modifications in which the Poisons Board does not concur; or
- (b) by order makes amendments or variations in the Poisons List in which the Board does not concur; or
- (c) makes rules under this Act in which the Board does not concur,

he shall, together with the order or rules, lay before each House of Parliament a statement of his reasons for making the order or rules.

Expenses
of local
authorities.

27. Any expenses incurred by a local authority under this Act shall be defrayed, in the case of the Common Council of the City of London and of a metropolitan borough, out of the general rate, in the case of the council of a county, as general county

expenses, and, in the case of the council of a county borough, out of the general rate fund. PART III.
—cont.

28. Subsection (2) of section seven of the Dangerous Drugs Act, 1920, shall have effect as if for the reference to a person who lawfully keeps open shop for the retailing of poisons in accordance with the provisions of the Pharmacy Act, 1868, as amended by the Poisons and Pharmacy Act, 1908, there were substituted a reference to a person lawfully carrying on business in accordance with the provisions of this Act as an authorised seller of poisons. Consequen-
tial amend-
ment of
s. 7.(2)
of 10 & 11
Geo. 5. c. 46.

29. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:— Interpreta-
tion.

“Arrangement with creditors” means a composition or scheme made in pursuance of the law for the time being in force relating to bankruptcy or a deed of arrangement to which the Deeds of Arrangement Act, 1914, applies: 4 & 5 Geo. 5.
c. 47.

“Authorised seller of poisons” means any of the persons declared by section eight, section nine and section ten respectively of this Act to be authorised sellers of poisons within the meaning of this Act:

“The board” means, in relation to a body corporate, the persons controlling that body, by whatever name called:

“Byelaws” means byelaws made by the Society:

“Certificate of registration” means such a certificate as is mentioned in section thirteen of the Pharmacy Act, 1868:

“The Council” means the Council of the Society:

“Dispensing” in relation to a medicine or a poison means supplying a medicine or a poison on and in accordance with a prescription duly given by a duly qualified medical practitioner, a registered dentist or a registered veterinary surgeon:

“Local authority” means in London, as respects the City of London, the Common Council, as respects any other part of the administrative

PART III.
—cont.

county of London, the council of the metropolitan borough, and elsewhere as respects a county the council of the county, and as respects a county borough the council of the borough:

“Pharmacist” means a pharmaceutical chemist or a chemist and druggist:

61 & 62
Vict. c. 25.

“Pharmacy Acts” means the Pharmacy Act, 1852, the Pharmacy Act, 1868, the Pharmacy Acts Amendment Act, 1898, the Poisons and Pharmacy Act, 1908, and sections three and four, and so far as it relates to poisons, section five of the Dangerous Drugs and Poisons (Amendment) Act, 1923, and, if the context so admits, includes a reference to this Act, and a reference to this Act includes a reference to rules made under Part III of this Act:

13 & 14
Geo. 5. c. 5.

“Poison” means a poison included in the Poisons List:

18 & 19
Geo. 5. c. 31.

“Public analyst” means a public analyst appointed under the Food and Drugs (Adulteration) Act, 1928:

“Register” means the register of pharmaceutical chemists or the register of chemists and druggists:

“Registered” means —

(a) in relation to a pharmacist, duly registered in the register:

44 & 45 Vict.
c. 62.

(b) in relation to a veterinary surgeon, registered in pursuance of the Veterinary Surgeons Act, 1881, either in the register of veterinary surgeons or in the register of existing practitioners:

41 & 42 Vict.
c. 33.

(c) in relation to a dentist, registered under the Dentists Act, 1878:

“Registered dentist” includes a body corporate entitled to carry on the business of dentistry:

“Registrar” means the registrar appointed under section four of the Pharmacy Act, 1852:

“Rules” means rules made by the Secretary of State under this Part of this Act:

“Sale by way of wholesale dealing” means sale to a person who buys for the purpose of selling again: PART III.
—cont.

“The Society” means the Pharmaceutical Society of Great Britain.

30. This Act in its application to Scotland shall have effect subject to the following modifications:— Application
to Scotland.

- (a) references to the High Court shall be construed as references to the Court of Session:
- (b) references to proceedings taken by, or by the direction of, the Society shall not apply:
- (c) references to a body corporate shall be deemed to include references to a firm, and in the application to a firm of any provision regarding a body corporate a reference to a member of the board shall be construed as a reference to a partner:
- (d) any reference to a person adjudged bankrupt shall be construed as a reference to a person of whose estate sequestration has been awarded, and the expression “adjudged bankrupt” shall be construed accordingly:
- (e) the expression “arrangement with creditors” shall mean a trust deed for behoof of creditors or composition contract:
- (f) subsection (6) of section ten shall have effect as if the references to a committee and to a person authorised to exercise the powers of a committee were omitted, and as if references to a curator bonis and a judicial factor were inserted:
- (g) the expression “local authority” shall mean, as respects a county, the council of the county, and as respects a large burgh within the meaning of the Local Government (Scotland) Act, 1929, the town council, and all other burghs shall be deemed to be within the county:
- (h) any expenses incurred by a county or town council under this Act shall be defrayed out of such rate payable by owners and occupiers in equal proportions as the council may determine:
- (i) subsection (2) of section twenty-one shall have effect as if for the reference to rules made by the

PART III.
—cont.

Secretary of State there were substituted a reference to Act of Sederunt and as if for the appeal mentioned therein there were substituted an appeal to the sheriff within whose jurisdiction the appellant's place of business is situate :

- (j) references in subsection (3) of section twenty-four to the Secretary of State shall be construed as references to the Lord Advocate.

Short title,
citation,
repeal, com-
mencement
and extent.

31.—(1) This Act may be cited as the Pharmacy and Poisons Act, 1933, and the Pharmacy Acts and this Act may be cited together as the Pharmacy and Poisons Acts, 1852 to 1933.

(2) This Act shall come into operation on the appointed day, and the appointed day shall be such day as His Majesty may by Order in Council appoint, and different days may be appointed for different purposes and for different provisions of this Act.

(3) This Act shall not extend to Northern Ireland.

(4) The enactments mentioned in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

Section 6.

FIRST SCHEDULE.

PROCEEDINGS OF THE STATUTORY COMMITTEE.

1. The quorum of the Statutory Committee shall be three, of whom the chairman shall be one, and the Committee shall, subject as hereinafter provided, have power to act by a majority of the members present :

Provided that no order directing—

- (1) that the name of a pharmacist shall be removed from the register ; or
- (2) that a body corporate shall cease to be an authorised seller of poisons or that all or any of the premises of the body corporate shall be removed from the

register of premises and be disqualified for any period from being registered therein; or

1st Sch.
—cont.

- (3) that the representatives of a pharmacist shall cease to be authorised sellers of poisons or cease to be entitled to use any title, emblem, or description

shall be made except with the assent of the chairman of the Committee.

2. In the case of an equality of votes, the chairman of the Committee shall have a casting vote.

3. The Statutory Committee may make regulations as to the procedure to be followed by it in exercising the jurisdiction conferred on it by this Act, but no such regulation shall have effect until confirmed by the Privy Council and the Privy Council may confirm any such regulation either with or without modifications :

Provided that where the Privy Council propose to confirm the regulations with modifications the Privy Council shall inform the Committee of the proposed modifications and give to it a reasonable opportunity of making any observations with respect thereto, and shall, before finally confirming the regulations, take into consideration any observations so made.

4. Every regulation made and confirmed under this Schedule shall be laid before each House of Parliament for a period of thirty days during the Session of Parliament and if an Address is presented to His Majesty by either House of Parliament before the expiration of that period praying that the regulation may be annulled it shall thenceforth be void but without prejudice to the validity of anything previously done thereunder or to the making of any new regulation :

Provided that in reckoning any such period of thirty days as aforesaid, no account shall be taken of any time during which both Houses of Parliament are adjourned for more than four days.

SECOND SCHEDULE.

Section 16.

CONSTITUTION OF POISONS BOARD.

1. The Board shall consist of sixteen members :

Provided that the Secretary of State may from time to time if he thinks fit appoint additional members of the Board, not exceeding three in all.

2ND SCH.
—cont.

2. The Board shall be composed of the following persons, namely :—

One person appointed by the Secretary of State for the Home Department ;

One person appointed by the Secretary of State for Scotland ;

Two persons appointed by the Minister of Health ;

One person appointed by the Minister of Agriculture and Fisheries ;

The person who is for the time being the Government Chemist or in his absence a member of his staff nominated by him ;

Five persons appointed by the Council of the Pharmaceutical Society of Great Britain, of whom one shall be a person engaged in the manufacture for sale by way of wholesale dealing of pharmaceutical preparations ;

One person appointed by the Royal College of Physicians of London ;

One person appointed by the Royal College of Physicians of Edinburgh ;

One person appointed by the General Medical Council ;

One person appointed by the Council of the Institute of Chemistry of Great Britain and Ireland ;

One person appointed by the British Medical Association ;

The additional members, if any, appointed by the Secretary of State.

3. Such member of the Board as the Secretary of State may appoint shall be the Chairman.

4. The appointed members of the Board shall hold office for a term of three years.

5. If the place of an appointed member of the Board becomes vacant before the expiration of his term of office, whether by death, resignation or otherwise, the vacancy shall be filled by appointment by the body or person by whom the vacating member was appointed, and any person appointed to fill a casual vacancy shall hold office so long only as the member to whose place he was appointed would have held office.

6. Any appointed member ceasing to be a member of the Board shall be eligible for re-appointment.

7. The powers of the Board may be exercised notwithstanding any vacancy among its members.

8. The quorum of the Board shall be eleven.

THIRD SCHEDULE.

Section 31.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
14 & 15 Vict. c. 13.	The Arsenic Act, 1851	The whole Act.
15 & 16 Vict. c. 56.	The Pharmacy Act, 1852.	In section two, the words “by a Special General “ Meeting of the Members “ of the said Pharma- “ ceutical Society, and” In section ten, the words “and every such person “ duly registered as a “ pharmaceutical chemist “ shall be eligible to be “ elected as a member of “ the said Society.” Sections twelve, thirteen, and fourteen.
31 & 32 Vict. c. 121.	The Pharmacy Act, 1868.	Sections one, two, fifteen, sixteen, seventeen and twenty-six, and Sched- ule F.
32 & 33 Vict. c. 117.	The Pharmacy Act, 1869.	The whole Act.
61 & 62 Vict. c. 25.	The Pharmacy Acts Amendment Act, 1898.	Section three.
8 Edw. 7. c. 55.	The Poisons and Phar- macy Act, 1908.	Sections one, two, three, and five, and the Schedule.
13 & 14 Geo. 5. c. 5.	The Dangerous Drugs and Poisons (Amend- ment) Act, 1923.	Sections three and four, and in section five the words “of the Schedule to the “ Poisons and Pharmacy “ Act, 1908, and”